

SENATE BILL 1973

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 7;
Title 8; Title 38; Title 40 and Title 41, relative to the
"Tennessee Freedom from Unlawful Immigration
Detention Act."

WHEREAS, the General Assembly finds that:

(1) The power to arrest or detain a person is among the most serious exercises of government authority and must be restrained by probable cause and judicial oversight, not federal administrative action. Civil immigration detainers and administrative warrants issued by federal agencies are not judicial warrants and do not, standing alone, authorize the deprivation of liberty under Tennessee law;

(2) United States immigration and customs enforcement ("ICE") routinely issues civil immigration detainers and administrative warrants that are not reviewed or approved by any judge;

(3) Such detainers do not establish probable cause and do not authorize arrest or detention under the Fourth Amendment to the United States Constitution or Article I, § 7 of the Tennessee Constitution;

(4) ICE detainers have resulted in the wrongful detention of United States citizens, lawful residents, and other Tennesseans;

(5) The use of State and local law enforcement to execute federal civil immigration enforcement shifts constitutional liability onto Tennessee, while depriving Tennesseans of due process;

(6) Tennessee has a sovereign obligation to prevent its officers, jails, and political subdivisions from being used to carry out unconstitutional federal actions; and

(7) It is the intent of the General Assembly to categorically prohibit the use of Tennessee law enforcement resources to detain any person on behalf of ICE absent a valid judicial warrant, and to deter federal abuse through enforceable state law consequences; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 38, Chapter 1, is amended by adding the following as a new part:

38-1-1001. Short Title.

This part is known and may be cited as the "Tennessee Freedom from Unlawful Immigration Detention Act."

38-1-1002. Definitions.

As used in this part:

(1) "ICE" means United States immigration and customs enforcement or any successor agency;

(2) "Immigration detainer" means any request, notice, hold, administrative warrant, or communication issued by ICE requesting the detention, continued detention, or transfer of a person for civil immigration enforcement purposes;

(3) "Judicial warrant" means a warrant issued by a federal or state judge or magistrate upon a finding of probable cause supported by oath or affirmation; and

(4) "Law enforcement agency" means any state, county, municipal, or metropolitan law enforcement agency, sheriff's office, jail, or detention facility.

38-1-1003. Absolute Prohibition on Detention for ICE.

(a) A person in this state shall not be detained, arrested, held, or have the person's liberty restrained by any law enforcement agency solely or primarily on the basis of:

- (1) An ICE immigration detainer;
- (2) An ICE administrative warrant;
- (3) An ICE request for notification, transfer, or extended custody; or
- (4) Suspected or alleged immigration status.

(b) Detention or continued detention is unlawful unless ICE presents a valid judicial warrant that:

- (1) Is signed by a judge or magistrate;
- (2) Establishes probable cause; and
- (3) Specifically authorizes detention or transfer of the named individual.

(c) An ICE detainer or administrative warrant has no legal force or effect under state law.

38-1-1004. Prohibition on Custody Transfers to ICE.

(a) A law enforcement agency shall not transfer custody of any person to ICE unless:

- (1) ICE presents the law enforcement agency with a valid judicial warrant; and
- (2) The transfer does not extend the person's detention beyond the time the person would otherwise be released under state law.

(b) A transfer made in violation of this section is unlawful detention.

38-1-1005. Enforcement and Civil Liability.

(a) A person unlawfully detained or transferred in violation of this part may bring a civil action in state court against:

- (1) The law enforcement agency involved;
 - (2) The political subdivision for which the law enforcement agency has jurisdiction; and
 - (3) Any officer who knowingly participated in the unlawful detention or transfer.
- (b) A prevailing plaintiff in an action brought under subsection (a) is entitled to:
- (1) Compensatory damages;
 - (2) Statutory damages of not less than one thousand dollars (\$1,000) per day of unlawful detention;
 - (3) Reasonable attorney's fees and costs; and
 - (4) Declaratory and injunctive relief.
- (c) Governmental immunity and sovereign immunity are waived for purposes of enforcing this part.

38-1-1006. Evidence of ICE Abuse.

In an action brought under § 38-1-1005, proof that detention occurred pursuant to an ICE detainer creates a rebuttable presumption that the detention was unlawful.

38-1-1007. No Federal Shield.

Compliance with ICE requests is not a defense to liability under this part. Neither federal policy nor federal encouragement shall excuse violations of state law or constitutional rights.

38-1-1008. Construction.

- (a) This part does not:
- (1) Interfere with federal immigration enforcement that is conducted without state or local participation; or
 - (2) Prevent ICE from acting independently within the limits of federal law.

(b) This part governs only the conduct of Tennessee officers and institutions.

SECTION 2. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.